

Dr Parismita Sarma vs Dr Sanjeeb Kalita on 19 September, 2022

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Bench: Devashis Baruah

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GAHC010159242022

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Tr.P.(C)./81/2022

DR PARISMITA SARMA
W/O DR. SANJEEB KALITA, D/O SRI GAURI SANKAR SARMA, R/O VILL -
TETELIA, NEAR SOMNATH MANDIR, P.O.-GOTANAGAR, P.S.-JALUKBARI,
DIST-KAMRUP(M), ASSAM, PIN-781011

VERSUS

DR SANJEEB KALITA
S/O SRI CHINTAHARAN KALITA, R/O VILL-KAHARPARA, P.O. -
NITYANANDA, P.S.-PATACHARKUCHI, DIST- BAJALI, ASSAM, PIN-781329,
PRESENT ADD- ITBP SECOND GATE, BORDER OF KIMIN, NORTH
LAKHIMPUR, P.S.-NORTH LAKHIMPUR, DIST- LAKHIMPUR, ASSAM, PIN-
787001

Advocate for the Petitioner : MS. J PAUL

Advocate for the Respondent : MR. B BARMAN

BEFORE
HONOURABLE MR. JUSTICE DEVASHIS BARUAH

ORDER

Date : 19.09.2022 Heard Ms. J. Paul, the learned counsel for the petitioner and Ms. N. Upadhyay, the learned counsel appearing on behalf of the respondent.

2. This an application under Section 24 of the Code of Civil Procedure, 1908(for short the Code) for transfer of Title Suit(D) Case No.63/2022 from the Court of the District Judge, Lakhimpur, North Lakhimpur to the Court of the Principal Judge, Family Court, Kamrup(Metro) at Guwahati.

3. The petitioner in the instant case had stated in the petition that the petitioner and the respondent married on 16/4/2021 by observing all Hindu Rights and Rituals at the Tetelia Shiv Mandir(Somnath Mandir), Guwahati and after marriage both the parties resided at village-Kaharpara, P.O. Nityananda, P.S. Patacharkuchi in the District of Bajali, Assam. It has been mentioned in the said petition that on 23/06/2022, the petitioner received the copy of the summons in respect to Title Suit(D) Case No.63/2022 filed under Section 13(1)

(i) (a) of the Hindu Marriage Act,1955 for dissolution of marriage by a decree of divorce. The said proceedings were filed before the Court of the District Judge, Lakhimpur, North Lakhimpur.

4. Although there has been various allegations made in the said petition against the respondent, but the question which have arisen for consideration before this Court is whether the Court wherein the divorce proceeding was filed by the respondent have the jurisdiction to try the said proceedings.

5. Section 19 of the Hindu Marriage Act, 1955 categorically mentions under which District Court a proceeding may be filed in respect to a matter pertaining to said Act. It has been mentioned in the petition that the marriage was solemnized at Guwahati and the petitioner who is the respondent in the said divorce proceeding being the wife resides at Guwahati and the parties have also not resided last in the district of North Lakhimpur. Referring to paragraph No. 18 of the divorce petition, the learned counsel appearing on behalf of the petitioner had submitted that the respondent serves as Scientist B Biotechnology APSCS & Page No.# 3/6 T CoE for Bioresources and Sustainable Development which is located at Kimen in the State of Arunachal Pradesh. It is therefore the submission of the learned counsel for the petitioner that the Court of District Judge at North Lakhimpur did not have the jurisdiction to entertain the instant proceedings.

6. During the hearing of the instant proceeding, on a specific query being made to the learned counsel appearing on behalf of the respondent as to why the said divorce proceeding was filed before the District Judge, North Lakhimpur, it was submitted with all fairness that the respondent though resides in Kimin, Arunachal Pradesh but taking into account that the nearest Court to his residence is the Court of the District Judge, North Lakhimpur, the suit was instituted before the District Judge at North Lakhimpur.

7. In the backdrop of the above submission, let this Court take into consideration, Section 19 of the Hindu Marriage Act, 1955 wherein it has been statutorily mandated where a petition under the said Act shall be presented to the District Court. Section 19 being relevant is quoted hereinbelow:

"19. Court to which petition shall be presented.- Every petition under this Act shall be presented to the district court within the local limits of whose ordinary original civil

jurisdiction--

- (i) the marriage was solemnized, or
- (ii) the respondent, at the time of presentation of the petition, resides, or
- (iii) the parties to marriage last resided together, or
- (iv) in case the wife is the petitioner, where she is residing on the date of presentation of the petition, or]

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- (v) the petitioner is residing at the time of the presentation of the

petition, in a case where the respondent is at that time, residing outside the territories to which this Act extends or has not been heard of as being alive for a period of seven years or more by those persons who would naturally have heard of him if he were alive."

8. A perusal of the said Section shows that every petition under the Hindu Marriage Act, 1955 has to be presented to the District Court within the local limits of whose ordinary original civil jurisdiction, the marriage was solemnized or the respondent, at the time of presentation of the petition, resides, or the parties to marriage last resided together, or in case the wife is the petitioner, where she is residing on the date of presentation of the petition or the petitioner is residing at the time of the presentation of the petition, in a case where the respondent is, at that time, residing outside the territories to which the Hindu Marriage Act, 1955 extends or has not been heard of as being alive for a period of seven years or more by those persons who would naturally have heard of him if he were alive.

9. In the backdrop of the above, if the facts as mentioned in the petition as well as in the divorce petition filed under Section 13(1) (i) (a) of the Hindu Marriage Act, 1955 is taken into consideration, it would be seen that it has been specifically mentioned that the respondent herein was a resident of village- Kaharpara, P.O. Nityananda, P.S. Patacharkuchi in the District of Bajali, Assam. It has further been mentioned that the respondent presently resides at the border of Kimin, Near Budh Bazar, P. S. - Lakhimpur, North Lakhimpur, Assam. It would also be seen that admittedly the marriage between the petitioner and the respondent was solemnized at Guwahati. It would be seen that the petitioner Page No.# 5/6 herein resides at Guwahati in the district of Kamrup(Metro). In paragraph No. 14 of the Transfer Petition, it has been mentioned that the petitioner never resided at Lakhimpur with the respondent. A wholesome reading of the Divorce Petition would show that there is no mention that the petitioner and the respondent resided together at the present address of the respondent except a vague statement being made in paragraph No. 2. A reading of the Divorce Petition upon being looked into and more particularly in paragraph No. 18, it would be seen that the respondent is serving as Scientist B Biotechnology APSCS & T CoE for Bioresources and Sustainable Development in Kimin, Arunachal Pradesh and he has been residing in the present address for the last two years. It has further been mentioned that the petitioner herein without any intimation and

all of a sudden on 5th of April, 2022 came along with her father and visited the respondent with an ulterior motive to destroy the social status and reputation of the petitioner in front of his seniors and colleagues. It would also be seen that in paragraph No. 9 of the divorce petition, it has been mentioned that the petitioner is an Assistant Professor in Rangia College and she took a rented house at Rangia. There is no mention whatsoever in the divorce petition as to when the petitioner shifted to the present residence of the respondent to support the statement in the present address of the respondent that the petitioner and the respondent last resided together. On the other hand as stated hereinabove in paragraph No. 18 of the divorce petition, it has been alleged that the petitioner all of a sudden came along with her father and visited the respondent with an ulterior motive to destroy the social status and reputation of the petitioner. Under such circumstances, in the opinion of the Court, the parties could not have been said to be last resided together in the present residence of the Respondent.

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10. Considering the above, the divorce proceedings which was filed by the respondent before the Court of the District Judge at North Lakhimpur was not in consonance with Section 19 of the Hindu Marriage Act, 1955. As the instant proceedings has been filed under Section 24 of the Code for transfer of the said proceedings to a place where the Court has the jurisdiction and taking into account that the marriage was solemnized at Guwahati and the petitioner herein who is a respondent in the said divorce proceedings resides at Guwahati, this Court deems it fit in the interest of justice to transfer the Title Suit(D) Case No.63/2022 from the Court of the District Judge, Lakhimpur, North Lakhimpur to the Court of the Principal Judge, Family Court, Kamrup(Metro) at Guwahati. The Court of the District Judge, Lakhimpur, North Lakhimpur is directed to forthwith transfer the records to the Court of the Principal Judge, Family Court, Kamrup(Metro) at Guwahati.

11. In view of the above order, the interim order dated 12/8/2022 stands vacated and the parties are directed to appear before the Court of the Principal Judge, Family Court, Kamrup(Metro) at Guwahati on 02/11/2022, on which date, the petitioner shall file her written statement.

12. Before concluding, this Court would like to observe that if the respondent herein i.e. the husband prefers an application seeking assistance of a legal practitioner, the court may consider the same taking into consideration that the respondent herein/the husband works in the State of Arunachal Pradesh and is a Government employee.

13. With the above, the petition stands allowed and disposed of.

14. The Registry is directed to intimate both the Courts below about this order.

JUDGE Comparing Assistant